

SENATE No. 2404

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to explore alternative funding sources to ensure safe and reliable transportation.

PETITION OF:

NAME:

Jason M. Lewis

DISTRICT/ADDRESS:

Fifth Middlesex

SENATE No. 2404

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 2404) of Jason M. Lewis for legislation explore alternative funding sources to ensure safe and reliable transportation. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2255 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to explore alternative funding sources to ensure safe and reliable transportation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. This bill is intended to help address the need for the commonwealth to
2 identify short- and long-term alternatives or supplements to the motor vehicle fuel tax, which is
3 particularly important given the diminishing value of the motor vehicle fuel tax, declining
4 supplies of conventional petroleum-based fuels, and increasing fuel-efficient vehicles. The
5 commonwealth is uniquely positioned to become a leader in the advancement of technology and
6 methods needed to develop and implement alternative ways to raise transportation revenue.

7 SECTION 2. TASK FORCE

8 (a) There shall be a vehicle mileage user fee task force to guide the development and
9 evaluation of a pilot program to assess the potential for mileage-based revenue collection for

Massachusetts' roads and highways as an alternative to the current system of taxing highway use through motor vehicle fuel taxes.

(b) The task force shall consist of the following members: the secretary of transportation or the secretary's designee, who shall serve as chair; 1 member to be appointed by the governor, who shall be a registered civil engineer with at least 10 years' experience; 1 member to be appointed by the president of the senate, who shall be a representative of a transportation consumer organization or other public interest organization; 1 member to be appointed by the minority leader of the Senate, who shall be an expert in transportation data security, 1 member to be appointed by the speaker of the house of representatives, who shall be a member of a regional planning agency; 1 member to be appointed by the minority leader of the house of representatives, who shall be a member of a business association; 1 member to be appointed by the Senate Chair of the Joint Committee on Transportation, who shall be an expert in the field of transportation finance; 1 member to be appointed by the House Chair of the Joint Committee on Transportation, who shall be a representative of a privacy rights advocacy organization.

(c) The task force may request the department of transportation to perform such work as the task force deems necessary to carry out its duties and responsibilities.

(d) The task force shall gather public comment on issues and concerns related to the pilot program; make recommendations to the department of transportation on the design and on the criteria to be used to evaluate a pilot program to test alternative approaches; and evaluate any pilot program implemented by the department under this Act.

(e) The task force shall conduct at least 6 public hearings, 1 in each of the department's highway districts. The task force shall provide interested persons with an opportunity to submit

their views orally and in writing and the department may create and maintain a website to allow members of the public to submit comments electronically and to review comments submitted by others. The task force shall provide notice of each public hearing by publication in a newspaper of general circulation in the highway district in which the hearing is to be located in each of 2 successive weeks, the first publication to be at least 14 days before the day of the hearing and, if feasible, by posting a notice in a conspicuous place in the cities or towns within the highway district for at least 14 consecutive days immediately prior to the day of the hearing.

SECTION 3. PILOT PROGRAM.

(a) The department of transportation shall develop, implement and oversee one or more statewide pilot programs to assess owners of motor vehicles a user fee that is based on the number of miles traveled on roads in this state by those motor vehicles.

(b) The pilot programs shall include at least 1,000 volunteers across the commonwealth who are representative of drivers of trucks, passenger, and commercial vehicles and throughout the commonwealth, who will have on-board vehicle-mileage-counting equipment added to their vehicles, administered in a manner the department of transportation deems appropriate.

(c) The pilot programs shall test the reliability, ease of use, cost and public acceptance of technology and methods for:

(1) counting the number of miles traveled by particular vehicles;

(2) reporting the number of miles traveled by particular vehicles; and

(3) collecting payments from participants in the pilot programs.

(d) The pilot programs shall also analyze and evaluate the ability of different technologies and methods to:

(1) protect the integrity of data collected and reported;

(2) ensure drivers' privacy; and

(3) vary pricing based on the time of driving, type of road, proximity to transit, vehicle fuel efficiency, participation in car-sharing or pooling or income of the driver.

(e) The pilot programs shall last at least one year.

(f) The department of transportation shall refund motor vehicle fuel taxes paid by participants in pilot programs under this Act or otherwise compensate participants in pilot programs under this Act to ensure that participants are not required to spend more on fees or taxes than if they had not participated in the program. Identifying information about participation in the pilot programs shall not be public and shall be exempt from disclosure under M.G.L. c. 66, s. 10.

(g) The Massachusetts Department of Transportation shall submit an application to the United States Department of Transportation for funding in federal fiscal year 2024 for the Surface Transportation System Funding Alternatives Program established in the Fixing America's Surface Transportation Act, or FAST Act to help fund the pilot program. If the application is not successful, the Massachusetts Department of Transportation shall thereafter apply in each federal fiscal year in which grants are made available for demonstration projects under this federal program or until the application results in funding for a vehicle miles traveled pilot program, whichever first occurs.

73 SECTION 4. REPORT.

74 Notwithstanding any general or special law to the contrary, no later than three years from
75 the passage of this Act, the department of transportation shall report to the general court the
76 initial result of the pilot study, including the feasibility of permanently assessing a vehicle
77 mileage user fee, an evaluation of the impacts of such a fee on the economy, the environment,
78 and traffic congestion, a comparison to other potential alternatives or supplements to the gas tax,
79 and its initial recommendations together with legislation necessary to carry its recommendations
80 into effect by filing the same with the clerks of the senate and house of representatives, and to
81 the joint committee on transportation.